Alabama Rules of Appellate Procedure

Rule 15.

Overruling cases.

No former adjudication of the court shall be overruled or materially modified except upon consultation of the court as a whole.

Committee Comments

Rule 15 derives from 1940 Title 13, § 12 and Code of Ala., § 12-2-13. The statutory requirement that former adjudications of the court, while they can be overruled by the court, shall not be so overruled without consideration by the court as a whole is simply carried forward in this rule. This requirement is intended to eliminate the possibility of a conflict between the rulings of divisions.